

25STCP02750 25STCP02750

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 25STCP02750 Hearing Date: August 11, 2026 Dept: 836

SUSANBAR MARGARYAN,

Petitioner,

Case No.

25STCP02750

vs.

CALIFORNIA DEPARTMENT OF SOCIAL SERVICES, et
al.,

Respondents.

[TENTATIVE] RULING ON DEMURRER TO VERIFIED
PETITION FOR WRIT OF MANDATE

Dept. 836 (Hon. Curtis A. Kin)

Respondent County of Los Angeles,
erroneously sued as "Los Angeles County IHSS," ("County") demurs to the Verified
Petition for Writ of Mandate. The
demurrer is SUSTAINED with leave to amend.

I. BACKGROUND

Petitioner Susanbar

Margaryan alleges that she is a 79-year-old disabled woman with advanced Alzheimer's disease, cortical atrophy, and severe cognitive impairments (Pet. at 1:18-19.) On September 1, 2023, County denied petitioner's request for protective supervision. (Pet. at 3:7-8.) On July 23, 2024, respondent California Department of Social Services ("CDSS") adopted the County's decision. (Pet. at 3:9.) On January 2, 2025, petitioner filed a rehearing request with various medical documents to support petitioner's cognitive decline; petitioner alleges there was good cause to consider the late-filed rehearing request because the medical documents were not available until late 2024. (Pet. at 3:10-14, 16 & Exs. 1-3.) On February 21, 2025, CDSS denied petitioner's rehearing request as untimely. (Pet. at 3:15.)

Petitioner alleges that CDSS violated her due process rights when it denied her rehearing request for protective supervision on the grounds that the decision was arbitrary; ignored new, material evidence; and failed to safeguard a vulnerable adult under Welfare & Insurance Code § 1230.21 (Pet. at 2:5-12.) Petitioner requests, inter alia, that the Court set aside CDSS's decision and order CDSS to grant petitioner's rehearing request. (Pet. at 6:10-16, Prayer for Relief ¶ 1.)

On July 23, 2025, petitioner filed a Verified Petition for Writ of Mandate (CCP § 1094.5). On July 30, 2026, County filed a demurrer to the Petition. As of August 3, 2026, no opposition has been received to the instant demurrer.

II. DISCUSSION

A.

Lack of Legal Representation

As a preliminary matter, County points out that it had attempted to meet and confer in good faith with petitioner in compliance with CCP § 430.41. (Brenner Decl. ¶¶ 2-4, 9) Any communication made by petitioner was through Mary Khamtrashyan, who identified herself as petitioner's daughter and "authorized representative." (Brenner Decl. ¶¶ 5-7.) Ultimately, no substantive meet-and-confer conference was held because Khamtrashyan withdrew the agreement to hold a telephonic conference on April 24, 2026, preferring any communication to transpire through email. (Brenner Decl. ¶¶ 7-8.)

The issue here is that, even as an “authorized representative,” Khamtrashyan does not have the authority to represent petitioner. (See *Drake v. Superior Court* (1994) 21 Cal.App.4th 1826; see also *Hansen v. Hansen* (2003) 114 Cal.App.4th 618, 621 [reasoning that a representative of the decedent’s estate may not appear in propria persona on behalf of the estate in matters outside the probate proceedings].) Petitioner concedes that she suffers from cognitive impairments (Pet. at 1:18-19), and it is unclear to the Court whether petitioner has the mental capacity to represent herself in this action. There is no indication that anyone has attempted to apply to be petitioner’s guardian ad litem or has pursued a conservatorship action through probate court. Further, even if a guardian ad litem or conservator were appointed, neither of them would be permitted to appear in pro per on petitioner’s behalf for the purpose of litigating this action, as so doing would violate the prohibition on the unauthorized practice of law. (*Drake*, 21 Cal.App.4th 1826; see also *Hansen*, 114 Cal.App.4th at 621.)

Accordingly, because the Court harbors genuine doubt and concern as to whether petitioner is capable of prosecuting this action on her own accord, the Court shall issue an Order to Show Cause as to why this matter should not be stayed or dismissed for petitioner’s lack of capacity and legal representation.

B.

The Petition Suffers from a
Defect of Parties

County also demurs to the petition pursuant to CCP § 430.10(d) on the ground that it is not the appropriate party. (Demurrer at 5.) The Court agrees that County is improperly named as a respondent in this petition.

A party against whom a complaint or cross-complaint has been filed may file a special demurrer on the ground that there is a defect or misjoinder of parties. (CCP § 430.10(d); *Union Carbide Corp. v. Superior Court* (1977) 36 Cal. 3d 15, 21-22.) This defect must appear on the face of the complaint or in matters judicially noticed. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal. App. 4th 193, 198.) Pursuant to Code of Civil Procedure § 389, “defect” means a necessary or indispensable party is absent from the action, whereas “misjoinder” means that a party has been improperly joined to an action.

Here, as shown by the petition, CDSS is the agency that denied petitioner's rehearing request on February 21, 2025. (Pet. at 3:15, 19 [Rehearing Denial Letter]) and appears to be an appropriate respondent. By contrast, the petition is devoid of any allegations that would support a claim against County. Accordingly, as alleged, the only proper respondent is CDSS, not County.

Accordingly, because the petition suffers from a defect of parties and County is improperly named as a respondent, the demurrer is SUSTAINED per CCP § 430.10(d).

County, however, concedes that it stands in the position of a real party in interest (Demurrer at 8:9-11), and the Court will provide petitioner with the opportunity to so amend.

III. CONCLUSION

The demurrer to the Petition is SUSTAINED per CCP § 430.10(d) with leave to amend. Petitioner shall file an amended petition within 20 days of receipt of this order, removing County as a respondent and identifying it as a real party in interest.

Further, the hearing on the Court's Order to Show as to why this matter should not be stayed or dismissed for petitioner's lack of capacity and legal representation shall be held on September 24, 2026, at 1:30 p.m., in Department 836.